

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

CROCUS INVESTMENTS, LLC AND CROCUS, FZE,
Complainants,

v.

MARINE TRANSPORT LOGISTICS, INC. AND ALEKSANDR
SOLOVYEV A/K/A ROYAL FINANCE GROUP INC.,
Respondents.

DOCKET NO. 15-04

Served: July 22, 2019

BEFORE: Erin M. WIRTH, *Chief Administrative Law Judge.*

REMAND SCHEDULING ORDER

On July 16, 2019, the Commission issued a memorandum opinion and order (“Commission Order”). The Commission adopted the findings of fact and affirmed the initial decision in this proceeding except for the narrow issue of an alleged violation of 46 U.S.C. § 41102(c) with respect to storage or other arrangements for the Formula boat from August 2013 to February 14, 2014.

Prior to issuing the initial decision, the parties completed discovery. In addition, discovery has been conducted in a related proceeding in federal court. Therefore, it is not anticipated that additional discovery will be required. If the parties feel that additional discovery would be helpful to establish any of the elements of the claim, then they should indicate in their brief the specific discovery request they propose and a statement of how the discovery would relate to an element of the claim. The parties may not submit discovery requests to each other – the only additional discovery permitted will be that approved by the undersigned after reviewing the parties’ briefs.

The briefs must be limited to the narrow issue remanded by the Commission – whether Respondents violated 46 U.S.C. § 41102(c) with respect to storage or other arrangements for the Formula boat from August 2013 to February 14, 2014. Commission Order at 2, 20-22, 26. The parties should address whether or not the Respondents were acting as ocean transportation intermediaries in handling the Formula boat during the relevant time period. Commission Order at 21. Parties should not brief issues affirmed by the Commission. Only the issue vacated and remanded will be decided.

In their briefs, the parties must identify legal and factual support for their arguments. The parties may propose additional findings of fact. The parties may cite to findings of fact in the initial decision as well as evidence that has already been admitted into the record. If a party seeks to introduce new evidence, then that evidence should be included in an appendix which is sequentially paginated and if anything is in a foreign language, an English translation must be

included. The party will also need to include in their brief an explanation of why the evidence should be admitted and why it was not submitted previously.

In their briefs, the parties should specifically address each of the elements of 46 U.S.C. § 41102(c) identified by the Commission in their December 17, 2018, final rule, which states:

46 U.S.C. 41102(c) is interpreted to require the following elements in order to establish a successful claim for reparations:

- (a) The respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary;
- (b) The claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis;
- (c) The practice or regulation relates to or is connected with receiving, handling, storing, or delivering property;
- (d) The practice or regulation is unjust or unreasonable; and
- (e) The practice or regulation is the proximate cause of the claimed loss.

46 C.F.R. § 545.4.

New arguments and evidence may not be included in Complainants' remand reply brief. Rather, the remand reply brief must be limited to responding only to arguments made in Respondents' remand opposition brief.

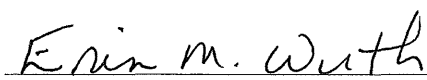
Copies of all briefs should be provided to the Office of Administrative Law Judges in word processing format. In addition, filings should be sent to the Office of the Secretary at *secretary@fmc.gov*, pursuant to their procedures, with a courtesy copy to *judges@fmc.gov* and opposing parties copied.

Upon consideration of the foregoing, it is hereby

ORDERED that Complainants file their remand brief by August 22, 2019. It is

FURTHER ORDERED that Respondents file their remand opposition brief by September 23, 2019. It is

FURTHER ORDERED Complainants file their remand reply brief by October 8, 2019.



Erin M. Wirth
Chief Administrative Law Judge